

REVISED AND RESTATED

CODE OF BYLAWS

for

OAK PARK HOMEOWNERS ASSOCIATION, INC.

ARTICLE I

Identification

Section 1. Name. The name of the corporation is “Oak Park Homeowners Association, Inc.” (hereinafter referred to as “Corporation” or “Association”).

Section 2. Principal Office and Registered Agent. The name and post office address of the principal office of the Association is: Oak Park Homeowners Association, Inc., 779 Pin Oak Drive, Plainfield, IN 46168, or as updated from time to time with the Indiana Secretary of State’s Office.

The registered agent of the corporation is currently: Wes Livingston, 779 Pin Oak Drive, Plainfield, IN 46168. However, it should be noted that the registered agent may be a member of the Board of Directors, a hired management agent, or other professional representing the Association and can potentially change from year to year. Therefore, the current registered agent of the Association can be determined through the most recent annual business entity report filed with the Indiana Secretary of State’s office.

The principal office of the Association will also serve as the registered place of business of the Association; however, it should be noted that the principal office for the Association can be changed by the Board of Directors and does not have to be the same as the registered place of business of the Association.

ARTICLE II

Definitions

Section 1. “Act” means the Indiana Nonprofit Corporation Act of 1991 and any subsequent amendments thereto.

Section 2. “Articles of Incorporation” or “Articles” means the Articles of Incorporation of the Corporation filed with the Office of the Secretary of State of Indiana, and includes any amendments that have been made to the original Articles.

Section 3. “Association” or “Corporation” means the Oak Park Homeowners Association, Inc.

Section 4. “Board of Directors” means the Board of Directors of the Association.

Section 5. “Bylaws” means the most current Code of Bylaws, including any amendments or revisions made to it by the Association.

Section 6. “Declarant” or “Developer” means Par Four, LLC, an Indiana limited liability company.

Section 7. “Declaration” or “Declarations” means the Declaration of Restrictive Covenants for Oak Park Subdivision recorded with the Office of the Hendricks County Recorder on May 14, 2004, as **Instrument # 2004-00015200**, and any amendments later made to the Declaration.

Section 8. “Director” means an individual member of the Board of Directors that has been elected or appointed to the Board of Directors following the procedures outlined in the Bylaws.

Section 9. “Owner” also referred to as “Member”, means the record owner of fee simple title to any lot (i.e. the name on the deed). These terms do not apply to any person who has or is acquiring such an interest merely as security for the performance of an obligation.

Section 10. “Property”, “Properties”, “Real Estate” and “Tract” means the real estate described in the Plat, Declaration or identified in the Exhibit(s) attached to the Declaration; and includes all of the property identified on the recorded Plat for the Development, along with any property that may have been later added to the Development, if any.

Section 11. All other terms used in these Bylaws not listed in this Article are to use the meaning given to them in the Declaration or by law.

ARTICLE III

Membership, Meetings, and Voting Rights

Section 1. Membership: All of the terms, provisions, and conditions governing and relating to membership in the Association transfer of membership and voting rights of classes of Members, are listed in the Declaration and/or Articles and are incorporated into these Bylaws by reference.

Section 2. Quorum and Adjournments: At any meeting of the membership, unless otherwise required by the Declaration, the presence of Members, in person or by proxy, entitled to cast ten percent (10%) of the total number of valid and eligible Owner votes will make up a quorum. For purposes of this section, the term “eligible” means any Owner whose privileges are not suspended for any reason as set forth in the Declaration, Articles or these Bylaws. If a Member has had his voting rights suspended pursuant to the Declaration, Articles or these Bylaws, then that Member’s vote is not considered a valid or eligible vote toward calculating quorum requirements. After a Member’s vote is represented, either in person or by proxy, for any purpose at a meeting, the Member’s vote will be considered present for quorum purposes for the remainder of the meeting and for any adjournment of that meeting, even if the Member leaves the meeting before a vote is taken.

If a quorum is not present at any meeting called under the authority of these Bylaws, that meeting may be adjourned to another date not more than sixty (60) days later. Please note that a follow-up meeting(s) may be called without a new notice being sent to the Members if it is called within sixty (60) days following the preceding meeting. If the follow-up meeting is re-set more than sixty (60) days from the previous meeting, then a new meeting notice must be sent to the Members.

Section 3. Meetings: Meetings of the Members of the Association will follow these procedures:

- A. **Place.** Meetings of the Members will be held in Hendricks County, Indiana, at a location picked by the Board of Directors of the Association.
- B. **Annual Meeting.** The Board of Directors of the Association will set a date for the Association's Annual Meeting to be held each year. The only limitation to setting the date for the Annual Meeting is that the Annual Meeting must be held within fifteen (15) months after the previous annual meeting. However, the specific date, time and place of the Annual Meeting are to be determined by the Board of Directors. At each Annual Meeting, the Members may conduct director elections, unless a separate date for director elections is used, and transact any other Association business to be properly addressed at the meeting.
- C. **Special Meetings.** A Special Meeting of the Lot Owners may be called by: a) the President; b) resolution approved by a majority of the Board of Directors; or c) by written petition signed by at least ten percent (10%) of the lot owners. The petition must be presented to the President or Secretary of the Association and must state the purpose(s) for which the Special Meeting is to be called. A Special Meeting may be called by the membership only to address items that are within the member's authority to review and vote upon. The percentage required for a quorum has no impact on the percentage of owner's necessary to approve an amendment to the Declaration.
- The Board of Directors has thirty (30) days from the date the Secretary receives a properly signed petition from the members to send a notice to the membership calling the requested Special Meeting. The purpose(s) of the Special Meeting, along with the date, time and location of the Special Meeting must be stated in the meeting notice sent to the lot owners. No business shall be transacted at a Special Meeting except as stated in the notice of the meeting, unless all the lot owners are present.
- It should be noted that according to the Act the members may not call or hold a Special Meeting of the members without first submitting a petition, signed by not less than ten percent (10%) of the members, asking that the Board of Directors call a Special Meeting as set forth above. If the Board refuses to call a Special Meeting of the members after receiving a proper petition from the members, then the members may call a Special Meeting of the membership on their own.
- D. **Notice of Meetings.** Except as otherwise stated herein, written or printed notices stating the place, day and hour of a meeting and, in case of a special meeting, the purpose or purposes for which the meeting is called must be delivered or mailed by the Secretary of the Corporation to each member of record of the Corporation entitled to vote at the meeting, at such last-known address as appears upon the records of the Corporation, at least ten (10) days before the date of the meeting, but not more than sixty (60) days prior to the meeting.

Notices of any meeting may be mailed by first class U.S. Mail. Notices of meetings may also be hand-delivered to an owner's residence. If the owner consents to electronic service, then notice of meetings may be provided to owners by email or postings on the Association's website, if the Association has one.

The Association does not have a duty to track down new or alternate addresses for an owner. It is the owner's responsibility to make sure the Association has the owner's current mailing or contact information.

Notice of any meeting of the members may be waived in writing by any owner or by the owner's attendance at the meeting in person, by proxy or by ballot.

- E. **Order of Business.** The order of business at meetings of the members will, to the extent applicable, be as follows:

1. Call to Order.
2. Reading of minutes of preceding meeting.
3. Reports of officers.
4. Reports of committees.
5. Treasurer's Report and review of Annual Budget (if an annual meeting).
6. Election of director(s) (if an Annual or Election meeting).
7. Unfinished business.
8. New business.
9. Adjournment.

Section 4. Voting at Meetings.

- A. **Voting Rights.** Unless otherwise suspended, each lot will be entitled to cast one (1) vote on each issue properly brought before the membership. In the event any lot is owned by more than one person, the owners will decide among themselves which co-owner with of the lot will cast the vote(s) for that lot at a meeting of the members. In the event the lot is owned by a corporation or other entity, that entity may appoint a representative to cast the vote(s) for the lot.

- B. **Proxies.** A member may vote either in person or by his duly appointed proxy. Where a member's vote is by proxy, the member must designate the name of his proxy in writing and deliver it to the Secretary of the Corporation or any other officer or agent of the Association authorized to tabulate votes. The proxy is effective once it is received by the Association. If the member fails to name a proxy on a general proxy form, the proxy will be counted towards quorum but will not be allowed to be cast or voted on any issue at the meeting. If the member fails to name a proxy on a limited proxy form, the proxy will be counted toward quorum and the Association's Secretary will cast the member's vote(s) as directed in the limited proxy.

A proxy must contain the member's printed name, address or Lot number, the member's signature, and the date the proxy is executed (signed). A proxy is only valid for eleven (11) months from the date of its execution unless a longer or shorter period of validity is expressly set forth in the proxy. A proxy may be revoked in writing by the member prior to being exercised or by the member's personal attendance at the meeting where the vote is to be taken.

If a member signs more than one proxy appointment, the latest in time, if possible to determine, is considered to be valid. If a member signs more than one (1) proxy to be used at a particular meeting, and it cannot be determined which proxy is the latest in time, then none of the member's proxies shall be counted or voted.

- C. **Majority Required.** Unless a higher percentage is required by the Declaration, Articles or these Bylaws, each question or action voted on will be passed if it is approved by a simple majority of the eligible votes cast by the Members present, in person or by proxy, at a meeting at which a quorum is present.
- D. **Suspension of Voting Rights.** No member shown on the books or management accounts of the Association to be more than thirty (30) days delinquent in any payment due to the Association will be eligible to vote, either in person or by proxy.

For purposes of this provision, the thirty (30) day period begins on the first day of the fiscal year or the due date of the assessment as set by the Board of Directors pursuant to its authority as set forth in the Declaration, whichever is later in time. If the amount due to the Association is for an obligation other than assessments, such as reimbursement for a covenant violation or court judgment, then the thirty (30) day period will start on the date the amount became due.

The term "payment" means the payment of all amounts due to the Association, including any assessments, collection fees, interest, late fees, administrative or management company fees, attorney fees, court costs, or other sums that are owed to the Association. As a result, if any owner is paying the Association on a payment plan or agreement, and that payment arrangement does not pay the entire amount due to the Association within thirty (30) days of becoming due, then that owner's voting rights will stay suspended until the entire amount due to the Association is paid in full.

In addition, payment of delinquent accounts by any method other than cash at a meeting where a vote will be held does not end any suspension under this provision until the funds from the payment are actually received by the Association. The Board of Directors is free to adopt additional rules regarding the suspension of voting rights as they deem necessary or appropriate for the failure of an owner to pay any sums owed to the Association.

Section 5. Action by Written Ballot, Etc. Any action required or permitted to be taken at any meeting of the Members may be taken by written ballot with or without a meeting if the Association delivers a written ballot to every owner eligible to vote on the matter. To be valid, the ballot must contain:

- a) the printed name of the lot owner;
- b) the signature of the lot owner;
- c) the lot(s) owned or being purchased by the lot owner; and
- d) the date the ballot is being signed.

Approval by written ballot is only valid if:

- a) the number of votes cast in person and/or by ballot equals or exceeds the quorum required to be present at a meeting authoring such action; and
- b) the number of approvals equals or exceeds the number of votes required to approve the matter at a meeting.

The written ballot must set forth each proposed action and provide an opportunity for the owner to vote for or against each proposed action. A solicitation, or request, for votes by written ballot must indicate:

- a) the number of responses needed to meet the quorum requirements;
- b) the percentage of approvals necessary to approve each matter, other than the election of directors; and
- c) specify the time by which a ballot must be received by the Association to be counted.

If a meeting is to be held, then ballots may be mailed or personally delivered to the Association's registered office prior to the meeting date; however, unless otherwise stated on the ballot, all ballots cast by owners NOT attending the meeting must be RECEIVED at the Association's registered office by the end of business at least two (2) calendar days prior to the date of the meeting in order to be counted. Unless otherwise stated on the ballot, any ballots received less than two (2) calendar days prior to the meeting date will not be counted.

If a meeting is NOT to be held, then owners must mail or personally deliver their ballot to the Association's registered office by the due date stated on the ballot.

Only official ballots sent to the owners by the Association will be accepted. Unofficial ballots will not be counted. Ballots must be received by the Association in a sealed envelope; ballots in open or unsealed envelopes will not be counted. Each owner must fully fill out the ballot, print their name and address and sign the ballot. The Board of Directors may adopt additional voting procedures for submitting and processing ballots.

If an owner signs or submits more than one ballot, the latest in time, if possible to determine, is considered to be valid. However, if an owner signs or submits more than one ballot, and it is not possible to determine which ballot is to be used, the Board may reject all ballots submitted by that owner.

In addition, voting and meeting participation may be held or performed in any manner set forth in the Act or deemed acceptable by the Courts as a practical way to collect votes and allow Members to participate in Association actions.

ARTICLE IV

Nomination and Election of Directors

Section 1. Nominations. Nominations for the Board of Directors may be made by any Owner from those persons eligible to serve. Such nominations may be made in writing and presented to the Secretary of the Association prior to the date of the annual meeting. The Board has the authority to set a deadline date for submitting written nominations prior to the annual meeting.

If an insufficient number of written nominations are received prior to the date of the annual meeting to fill all Board positions open for elections at the annual meeting, then oral nominations will be accepted from the floor prior to voting on any open Directorship position.

If a sufficient number of written nominations are received prior to the date of the annual meeting to fill all Board positions open for elections at the annual meeting, then the presiding officer of the annual meeting has the sole discretion to either: 1) stand on the submitted written nominations; or 2) accept additional oral nominations from the floor prior to voting on any open Directorship position.

Section 2. Election. Voting on each position for the Board of Directors will be by paper ballot containing the signature, printed name and address of the Owner casting the ballot. Written balloting may be waived by proper motion at the annual meeting and voting conducted by a voice vote or show of hands in circumstances where the number of nominees does not exceed the number of Board positions open for election (i.e. 2 nominees for 2 open directorships).

Each Owner, or their proxy, may cast the total number of votes to which he is entitled to cast for as many nominees as are to be elected; however, cumulative voting will not be allowed. Those persons receiving the highest number of votes shall be elected.

If there is a tie for a directorship position(s), the nominees involved in the tie may agree to the end result without the need for a new run-off vote. If the nominees cannot resolve the election dispute by agreement, then the presiding officer will have the sole discretion to decide the issue by either: 1) conducting a run-off ballot vote by the members; 2) draw from a hat; or 3) the flip of a coin.

In the event no quorum is present at an annual meeting of the Association, or if a sufficient number of candidates cannot be found to fill all open Board vacancies at the annual meeting, whether by slating, written petition or oral nomination, then the remaining members of the Board of Directors may fill any directorship positions open for election at the annual meeting. Any Director so appointed to fill an open position on the Board of Directors will serve the same term as if elected by the members at the annual meeting.

Section 3. Conducting Elections by Ballot. The election of directors may be conducted by ballot so that owners may select their nominees and send in their votes prior to the annual or election meeting. If the number of written nominations received by the Association before the deadline date

exceeds the number of open board positions to be filled at the annual or election meeting, then a ballot will be mailed to each owner for voting on new board members. *If the election of directors is conducted by ballot voting, then NO write-in nominations or nominations from the floor of the meeting will be accepted so everyone has a chance to vote on the same list of candidates.*

If the number of written nominations received by the Association before the deadline date matches the number of open board positions to be filled at the annual or election meeting, then there is no reason to incur the expense of a mailed ballot since all submitted nominees will be elected by default. In this situation, the Board may simply waive ballot voting and accept the submitted nominees by voice vote at the annual or election meeting.

If an insufficient number of written nominations are received by the deadline date to fill all Board positions open for election at the annual or election meeting, then ballot voting will not be conducted and oral nominations will be accepted from the floor of the meeting prior to voting on any open Directorship position.

ARTICLE V

Board of Directors

Section 1. Number, Qualifications and Term of Office.

(a). **Number.** The affairs of the Association will be governed and managed by the Board of Directors (collectively called the “Board” or “Directors” and individually called “Director”). The Board of Directors will be composed of five (5) persons, with the minimum number of Directors being three (3) and the maximum number being five (5). The exact number of Directors may be increased or decreased, as permitted by law, by resolution of the Board of Directors. If the number of directors currently serving changes due to the resignation or removal of directors, or if an insufficient number of members volunteer to fill all possible Board positions, the Board will continue to function with the remaining number of directors until those vacancies are filled so long as there are at least three (3) directors serving per IC 23-17-12-3.

(b). **Qualifications.** Directors must be members of the Association and they must maintain their primary place of residence in the Oak Park community and not have their membership rights in the Association suspended for any reason as set forth in the Declaration, Articles or these Bylaws. No lot may be represented by more than one person or representative on the Board of Directors at the same time; nor can an owner, along with a spouse, significant other or family member, hold more than one (1) directorship at the same time, even if the owner, spouse, significant other, or family member owns more than one (1) lot in Oak Park.

(c). **Term of Office Generally.** At the first election of directors held after these Revised Bylaws are adopted by the Board, two (2) director will be elected to serve a three (3) year term of office, two (2) director will be elected to serve a two (2) year term of office, and one (1) director will be elected to serve a one (1) year term of office. For all future elections, directors will be elected to serve a three (3) year term of office. Each director will serve his full term and/or until his successor is properly elected and qualified.

Section 2. Vacancies and Removal.

(a). **Vacancies.** Unless a director is removed from the Board by a vote of the owners, any vacancy or vacancies occurring in the Board will be filled by a vote of a majority of the

remaining members of the Board. A director appointed by the Board or elected by the members to fill a vacancy on the Board will serve the remaining portion of the Board term of the director he is replacing.

(b). Removal. A director or directors may be removed with or without cause by vote of a majority of the voting Members at a special meeting of the Members duly called and constituted. If a director is removed by a vote of the Members, then a successor will be elected at the same meeting from eligible Members nominated at the meeting. The person elected to fill the spot of the removed director will serve the remaining portion of the Board term of the director he is replacing.

Pursuant to Indiana Code 23-17-12-10, as may be amended or re-codified from time to time, the Board of Directors also may remove a director from the Board by a two-thirds (2/3) vote of the Board for the following specific acts: a) failing to attend three (3) or more consecutive meetings of the Board of Directors; b) becoming ineligible to serve on the Board according to any terms set forth in the Declaration, Articles or these Bylaws; c) acts of fraud, theft, deception, or criminal behavior while performing his duties as a director; d) breach or disclosure of confidential Board or owner information to person(s) not on the Board; or e) performing any action in the name of or on behalf of the Association that is not within the director's duties as set forth under the Bylaws, was not previously authorized by the Board, or was not subsequently ratified by the Board.

If a director is removed by a vote of the Board, the vacancy will be filled by a majority vote of the remaining Directors and the appointee will serve the remaining portion of the Board term of the director he is replacing.

Section 3. Duties of the Board of Directors. The Board of Directors is the governing body of the Association. The Board is responsible for overseeing the functions and duties of the Association, which includes such things as the administration of the Real Estate; the management, maintenance, repair, upkeep and replacement of the Common Area (unless these are designated as being the responsibility of the Owners); and collecting assessments and paying the common expenses of the Association.

The Board is to carry out these duties in good faith, with the care an ordinarily prudent person in a like position would exercise under similar conditions, and in a manner the Board believes to be in the best interest of the Association. The availability of funds, the unforeseen or unexpected nature of expenses caused by natural, administrative, or regulatory reasons, or any other factor or factors which may hinder or prevent the Board from taking action to fulfill any of these duties will be considered in determining the reasonableness of the Board's actions or failure to provide certain services or maintenance as required.

The Board may hire a managing agent. The managing agent will help the Board in carrying out its duties, which include such things as:

- (a) maintenance, repair, replacement, landscaping, painting, decoration, furnishing, and upkeep of the Common Areas (unless these are designated as being the responsibility of the Owners);
- (b) obtaining utilities used for the Common Areas (unless the utilities are provided and billed directly to Owners by the utility companies);
- (c) assessment and collection from the Owners of their respective shares of the Common Expenses;
- (e) preparation of an annual budget for the operation of the Association and anticipated common expenses, a copy of which will be mailed or delivered to each Owner;
- (f) preparing and delivering annually to the Owners a full accounting of all receipts and expenses incurred in the prior fiscal year;

- (g) keeping a current, accurate and detailed record of receipts and expenditures affecting the Common Areas and the business and affairs of the Association, itemizing the Common Expenses when possible;
- (h) obtaining and maintaining for the benefit of the Association, the Owners, any Managing Agent and the Board the insurance coverage required under this Declaration and such other insurance coverage as the Board, in its sole discretion, decides is necessary or advisable;
- (i) paying taxes and assessments assessed against the Common Areas and paying any other necessary expenses and costs in connection with the Common Areas;
- (j) enforcing the covenants, restrictions, bylaws and rules and regulations set forth in the Declaration, Articles, Bylaws or adopted rules and regulations;
- (k) all duties and obligations imposed upon the Association or the Board in the Declaration, the Articles, the Bylaws or the Act.

Section 4. Powers of the Board of Directors. The Board of Directors will have the powers that are reasonable and necessary to perform its duties. Some of these powers include the power to:

- (a) hire a managing agent to assist the Board in performing its duties;
- (b) purchase, lease or obtain for the Association any equipment, materials, labor and services that will help the Board perform its functions and duties;
- (c) employ legal counsel, architects, contractors, accountants and others to help advise the Board on the business and affairs of the Association;
- (d) hire, oversee, and discharge personnel that the Board decides is necessary to help perform the maintenance, upkeep, repair and replacement of the Common Areas;
- (e) assess the owners for the costs of performing all of the functions, duties and obligations of the Association as Common Expenses and to pay all such costs from those assessments;
- (f) open and maintain a bank account or accounts in the name of the Association;
- (g) create, adopt, revise, amend or alter from time to time such additional rules and regulations with respect to use, occupancy, operation, enjoyment, and architectural additions or modifications of the Property, including the individual lots, streets (whether public or private), and the Common Areas, with these rules and regulations being in addition to or supplementing the provisions set forth in the Declaration, as the Board, in its discretion, deems necessary or advisable; provided, however, that copies of any such additional rules and regulations so adopted by the Board must be promptly delivered to all Owners at the Owner's last known address unless they are recorded in the Office of the Hendricks County Recorder;
- (h) take any and all appropriate action, including legal action, if necessary, to enforce or gain compliance by all Owners of the provisions, restrictions or requirements within Declaration, Articles, Bylaws, or rules and regulations of the Association;
- (i) grant to such public or private companies, entities or bodies as the Board may approve, such easements as may be necessary to provide the Lots, Dwelling Units and Common Areas with facilities for utility and similar services, including but not limited to cable television facilities and service; provided that such easements are located within or are co-extensive with any one or more utility easements, maintenance and access easements, landscape and maintenance easements, or Common Areas shown upon, and identified as such on, or provided for in, any subdivision plat of the Development, whether such plat is heretofore or hereafter recorded.

Section 5. Annual Meeting. The Board of Directors must meet annually, without notice, immediately following, and at the same place as, the annual or election meeting of the membership; or at the next regularly scheduled Board meeting, for the purpose of electing officers.

Section 6. Regular Meetings. Regular meetings of the Board of Directors will be held at such regular intervals, without notice, at such place and hour as may be determined from time to time by resolution of the Board of Directors. If a regular meeting of the Board is to be held on a date other than a regularly scheduled meeting date previously set by the board, then notice of the meeting must be provided to each director at least forty-eight (48) hours prior to the meeting.

Section 7. Special Meetings. Special meetings of the Board of Directors may be called by the President or by a majority of the members of the Board of Directors, at any place within or without the State of Indiana, upon twenty-four (24) hours notice, specifying the time, place and general purposes of the meeting, given to each Director personally, by telephone or email, or notice may be given by U.S. Mail if sent, via first class, postage pre-paid, mail at least three (3) days before such meeting.

Section 8. Notice and Waiver of Notice. Notices of Board meetings must be given to each Director as set forth in these Bylaws. A Director waives formal meeting notice requirements by attending the meeting or by voting in writing or email on any issue addressed at a meeting of the Board.

Section 9. Quorum. A majority of the entire Board of Directors then qualified and acting will constitute a quorum and be sufficient for transaction of any business, except for filling vacancies in the Board of Directors which requires action by a majority of the remaining Directors. Any act of the majority of the Directors present at a meeting at which a quorum is present will be considered an act of the entire Board unless otherwise provided for by law or by these Bylaws. A majority of the Directors present may adjourn any meeting from time to time. Notice of an adjourned meeting need not be given other than by announcement at the time of adjournment.

Section 10. Attendance at Board Meeting. Any board member may participate in a board meeting telephonically, such as a conference call, or electronically, such as internet video transmission, or other internet or electronic communication by which all directors participating may hear each other during the meeting.

Section 11. Action Taken Without a Meeting. Any action required or permitted to be taken at a meeting of the Board of Directors or any committee may be taken without a meeting if the action is approved by a majority of the entire Board in writing or via email. If an action is approved via writing or email, evidence of the written or email approval must be made a part of the corporate Board minutes or records. However, failure to keep documentation of the approval does not automatically invalidate the decision.

Section 12. Compensation. No Director may receive any compensation for his services as such except to such extent as may be expressly authorized by a majority vote of the Owners. However, any Director may be reimbursed for his actual expenses incurred in the performance of his duties. The Managing Agent, if any is employed, is entitled to reasonable compensation for its services, the cost of which shall be a Common Expense.

Section 13. Non-Liability of Directors. The Directors will not be liable to the Owners or any other Persons for any error or mistake of judgment exercised in carrying out their duties and responsibilities as Directors, except for their own individual willful misconduct, bad faith or gross negligence. The Association will indemnify and hold harmless and defend each of the Directors against any and all liability to any person, firm or corporation arising out of contracts made by the Board on behalf of the Association, unless any such contract was made in bad faith. It is intended that the Directors will have no personal liability with respect to any contract made by them on behalf of the Association.

Section 14. Additional Indemnity of Directors. The Association will indemnify, hold harmless and defend any person, his heirs, assigns and legal representatives, made a party to any action, suit or proceeding by reason of the fact that he is or was a Director of the Association, against the reasonable expenses, including attorneys' fees, actually and necessarily incurred by him in connection with the defense of such action, suit or proceeding, or in connection with any appeal therein, except as otherwise specifically provided herein in relation to matters as to which it is adjudged in such action, suit or proceeding that such Director is liable for gross negligence or misconduct in the performance of his duties. The Association will also reimburse to any such Director the reasonable costs of settlement or of judgment rendered in any action, suit or proceeding, if it is found by a majority vote of the Owners that such Director was not guilty of gross negligence or misconduct. In making such findings and notwithstanding the adjudication in any action, suit or proceeding against a Director, no Director will be considered or deemed to be guilty of or liable for negligence or misconduct in the performance of his duties where, acting in good faith, such Director relied on the books and records of the Association or statements or advice made by or prepared by the Managing Agent (if any) or any officer or employee thereof, or any accountant, attorney or other person, firm or corporation employed by the Association to render advice or service unless such Director had actual knowledge of the falsity or incorrectness thereof; nor will a Director be deemed guilty of or liable for negligence or misconduct by virtue of the fact that he failed or neglected to attend a meeting or meetings of the Board of Directors.

Section 15. Bond. The Board of Directors may provide surety bonds (or an equivalent form of coverage) and may require the managing agent (if any), the treasurer of the Association, and such other officers as the Board deems necessary, to provide surety bonds (or an equivalent form of coverage), indemnifying the Association against larceny, theft, embezzlement, forgery, misappropriation, wrongful, abstraction, willful misapplication and other acts of fraud or dishonesty, in such sums and with such sureties as may be approved by the Board of Directors and any such bond (or equivalent form of coverage) must specifically include protection for any insurance proceeds received for any reason by the Board. The expense of any such bonds (or equivalent form of coverage) will be a Common Expense.

ARTICLE VI

Officers

Section 1. In General. The term "Officer" is the name given to the particular position a Director may be serving on the Board. Each officer position carries different duties on the Board. The officers of the Corporation must be members of the Board of Directors and may consist of a President, a Vice President, a Secretary, a Treasurer, etc. The same director can hold more than one officer position, except for the offices of President and Secretary which cannot be performed by the same person.

Section 2. Election and Terms. Officers are not elected by the members. Only directors are elected by the members. At the first Board meeting held after the election of directors at the annual meeting, the Board of Directors will assign each officer position to a member of the Board of Directors. Each officer will hold that officer position until: a) the next annual meeting of the Board; b) the expiration of the director's term on the Board of Directors; or c) the director's removal or resignation from the Board, whichever occurs first.

Section 3. Vacancies and Removal. Whenever a vacancy occurs in an office due to the death or resignation of the officeholder, or due to new office positions being created by the Board, the vacant

office position will be filled by the Board of Directors, and the officer appointed to the office will hold that office until the next annual meeting of the Board.

A Director may be removed from an officer position at any time, with or without cause, by a vote of a majority of the whole Board. A Director removed from a particular office shall continue to serve on the Board of Directors, and may be re-appointed to a different office or may serve on the Board without an officer designation.

Section 4. President. The President is the chief executive officer of the Corporation. The President presides at all meetings of Voting Members and of the Board of Directors; has general and active supervision, control, and management of the affairs and business of the Corporation, subject to the orders and resolutions of the entire Board; handles the general supervision and direction of all officers, agents and employees of the Corporation; makes sure that all orders and resolutions of the Board are carried into effect; and in general exercises all powers and perform all duties normally part of the President's office and any other powers and duties assigned to him by the Board.

The President has full authority to execute proxies on behalf of the Corporation, and to execute, with the Secretary, powers of attorney appointing other corporations, partnerships or individuals as the agent of the Corporation, all subject to the provisions of the laws of the State of Indiana, the Declaration, the Articles of Incorporation, this Code of Bylaws, and the approval of the entire Board.

Section 5. Vice-President. The Vice-President acts in the place of the President if the President is absent, unable to act, or refuses to act, and will also have any other duties as may be assigned to him by the Board of Directors or delegated to him by the President.

Section 6. Secretary. The Secretary will attend both Board meetings and Membership meetings and will keep minutes during the meetings and record all votes taken at these meetings. The Secretary is also responsible for making sure all meeting notices are sent to the Board and the Members as required by these Bylaws and/or the law. The Secretary also keeps or oversees the records of the Corporation as well as the Membership list of the Association. The Secretary also performs any other duties that may be assigned to him by the Board or the President. The Board has the authority to appoint someone to perform the duties of the Secretary or serve as the Secretary's assistant.

Section 7. Treasurer. The Treasurer keeps correct and complete financial records of the Association. The Treasurer is also in charge of the Association's funds and securities, and oversees the timely deposit of all money and other valuable effects belonging to the Association in a financial institution selected by the entire Board. The Treasurer also pays the Association's bills as approved by the Board or directed by the President; and in general exercises all the powers and duties customarily performed by the Treasurer's position, and any other powers and duties assigned to him by the Board or the President. The Board has the authority to appoint someone to perform the duties of the Treasurer or serve as the Treasurer's assistant.

Section 8. Special Appointments. The Board of Directors has the authority to appoint any other officers or assistant officers that the Board believes are necessary or advisable. These officers or assistant officers will hold their positions at the discretion of the Board, and will have the power and perform the duties assigned to them by the Board. However, these special appointments or assistants, even if they perform the duties of a specific officer, will not have any voting power on the Board.

ARTICLE VII

Committees

The Board of Directors, by resolution adopted by a majority of the Board of Directors, may create or appoint one (1) or more committees to assist the Board in carrying out the purposes of the Association. Committee members do not need to be members of the Board of Directors.

Each committee, to the extent provided in such resolution or as authorized by the Act, Articles, Declaration, these Bylaws, or the Board, will have the authority and duties assigned to it by the Board, except that no committee may:

- a. Adopt, amend or repeal the Articles of Incorporation;
- b. Approve or recommend a plan of merger or consolidation of the corporation not requiring Member approval;
- c. Approve or recommend to the Members the sale, pledge, lease, transfer or exchange of all or substantially all of the assets of the Corporation;
- d. Approve or recommend to the Members the dissolution of the Corporation or a revocation thereof;
- e. Adopt, amend, or repeal the Bylaws of the Corporation;
- f. Fill vacancies on the Board of Directors or committees;
- g. Elect, appoint or remove Directors or members of committees;
- h. Fix the compensation of any member of such committee; or
- i. Alter or repeal any resolution of the Board of Directors that by the resolution's own terms cannot be amended or repealed.

Unless the Board directs otherwise, the committee's members may determine when the committee meets and how it performs its duties. The Board of Directors has the power at any time to: a) change the number of committee members; b) change the actual members of a committee; and c) end or discharge a committee. The creation of a committee does not relieve the Board of Directors, or any member thereof, of any responsibility imposed upon it or him by the Indiana Nonprofit Corporation Act of 1991, as amended.

ARTICLE VIII

Records of the Association

Section 1. In General. Current copies of the Declaration, the Articles, the Bylaws, rules and regulations, other corporate documents concerning the Real Estate or the Association and its operation required to be kept and made available for inspection will be available for inspection by any member or other properly designated party at the principal office of the Association during reasonable business hours or under other reasonable circumstances, where copies of the same may be purchased at reasonable cost.

The Association will keep detailed books of account showing all expenditures and receipt of administration which will specify the maintenance and repair expenses of the Common Areas, all easements, and any other expenses incurred by or on behalf of the Association and the members. The accounts, books, records, financial statements, and other papers of the Association will be open for

inspection by any member upon written request submitted to the Board at least five (5) days in advance of the inspection date, and said inspection is to be made during reasonable business hours or under other reasonable circumstances. Any holder, insurer, or guarantor of a first mortgage on a Lot will be entitled upon written request to receive a financial statement for the immediately preceding fiscal year. The Association is entitled to reimbursement from the party requesting to inspect records any reasonable administrative or reproduction expenses incurred by the Association as a result of the records request.

The Association reserves the right to require any member to request inspection of the accounts, books, records, financial statements, and other papers of the Association according to the requirements set forth under the Indiana Nonprofit Corporation Act of 1991, specifically Indiana Code 23-17-27 et seq., and any amendments or re-codification subsequently adopted thereto. The Association reserves the right to deny an owner access to any records that are not required to be opened for inspection under Indiana law, or if the Association determines the owner's request; a) was not made in good faith or for a proper purpose; b) the member fails to describe with reasonable particularity the purpose and the records the member desires to inspect; or c) the records requested are not directly connected to the stated purpose for the request.

Section 2. Record Retention. Except for ballots voting on a covenant amendment, the Association must keep ballots for a period of ninety (90) days following the meeting date where an election or vote was held. After ninety (90) days has passed, any vote taken at the meeting will be presumed valid and accepted by the membership and the ballots may be destroyed by the Board or their designated agent. Ballots voting on an amendment to the covenants must be permanently retained in the corporate records unless they are attached to the recorded document.

In addition, other records of the Association not essential for tax purposes, such as meeting minutes, must be kept for a period of three (3) years before being destroyed. Financial records essential for a state or federal tax audit, if one is ever conducted, must be kept for seven (7) years before being destroyed.

ARTICLE IX

Execution of Instruments

Section 1. Checks, Draft, etc. All checks, drafts, or other orders for the payment of money, obligations, notes or other evidences of indebtedness of the Association must be signed or endorsed by the Treasurer, President, or another officer, employee or agent of the Association designated by the Board of Directors.

Signatories on each account held by the Association must be designated and approved by a majority vote of the Board, and the signatories may be removed and/or replaced at any time by a majority vote of the Board.

Section 2. Contracts. All contracts, agreements, deeds, conveyances, mortgages and similar instruments authorized by the Board of Directors must be signed, unless otherwise directed by the Board of Directors or required by law, by the President and attested by the Secretary or another officer.

Except as provided in these Bylaws, no officer, agent, or employee has the power to bind the Association or to render it liable for any purpose or amount unless the act is previously authorized or later ratified by the Board of Directors.

ARTICLE X

Assessments and Fiscal Year

Section 1. Assessments. Each Owner is obligated to pay to the Association annual and special assessments as more specifically described in the Declaration. The assessments are secured by a continuing lien upon the property against which the assessment is made. Any assessments which are not paid within thirty (30) days are considered delinquent.

If the assessment is not paid within thirty (30) days after the assessment falls due, the assessment may bear interest from the date of delinquency at a rate no greater than the current statutory maximum annual interest rate. In lieu of interest, the Association may impose reasonable late fees on all delinquencies. The Board will determine the amount of the late fee, the time period before the late fee is imposed, the rate of the late fee (i.e. annually, monthly, quarterly, etc.) and to make any other provisions for late fees and/or interest charges on late payments as the Board, in its sole discretion, deems appropriate. The Board may also adopt specific collection procedures to be used in collecting assessments and pursuing delinquent accounts.

If the Association incurs administrative fees or expenses as a result of collecting delinquent amounts, including fees charged to the Association by the Association's management company as part of a contractual agreement for the handling of collection matters for the Association, the Owner must reimburse the Association these fees.

If the Association employs legal counsel to pursue the collection of unpaid amounts owed to the Association, the Owner must reimburse to the Association any collection costs or expenses for the sending of collection letters or other correspondence or communication prior to the filing of legal action, or for the Association's attorney to take any other action in an attempt to collect the unpaid amounts.

The Association may bring an action at law against the Owner personally obligated to pay the assessments or charges, or it may foreclose the lien against the property, or both, and there will be added to the amount of the Owner's account balance the costs of preparing the collection notices and letters, preparing and filing the complaint in such action, interest or late fees on any assessment as above provided, administrative or management company charges for the handling of the collection account, and reasonable attorneys' fees, together with the court costs of the action.

In addition, an Owner who becomes more than thirty (30) days delinquent on any assessment or other payment due to the Association will not be eligible to: a) vote on any Association matter, either in person or by proxy; b) be elected or serve on the Association's Board of Directors; or c) use any of the Common Area facilities, if any.

Section 2. Fiscal Year. The fiscal year of the Association begins at the beginning of the first day of January in each calendar year and ends at the close of the last day of December of the same calendar year.

ARTICLE XI

Rules and Regulations; Enforcement

Section 1. Rules and Regulations. The Board has the authority to create, adopt, revise, amend or alter from time to time such additional rules and regulations with respect to use, occupancy, operation, enjoyment, and architectural additions or modifications of the Property, including the individual lots, streets (whether public or private), common areas, and any other portion of the Property, including the personal conduct of the members and guests thereon, as in the sole discretion of the Board are deemed necessary or advisable. Copies of any rules and regulations adopted by the Board must be delivered to all owners at their last known address unless they are recorded in the Office of the Hendricks County Recorder.

All rules, regulations, policies, procedures and guidelines are binding and enforceable upon each and every lot and member, including all occupants, guests and invitees of any lot or member in the Development the same as if it were expressly set forth in the Declaration itself. Any rules, regulations, policies, procedures and guidelines adopted by the Board may be specifically overruled, cancelled, or modified by the Board or at a duly called and constituted regular or special meeting of the members by a majority vote of all eligible members of the Association.

Section 2. Enforcement In General. Any party subject to the Declaration or these Bylaws, including the Association, any committee, or any individual owner, may proceed at law or in equity to prevent the occurrence, recurrence or continuation of any violation of the Declaration, these Bylaws, or any properly adopted rules, regulations, policies, procedures or guideline of the Association. However, neither the Association nor any committee may be held liable for damages of any kind, including legal fees and costs, to any owner or person for failing to enforce or carry out any of the provisions of the Declaration or these Bylaws.

No delay or failure on the part of the Association or any owner to seek any available remedy regarding a violation of any provision of the Declaration or adopted rule of the Association will be a waiver by the Association or any owner (or an estoppel of that party to assert) any right available to him upon the occurrence, recurrence or continuation of a violation of the Declaration or rule adopted by the Association. Likewise, no delay or failure of the Association or any owner to enforce any particular provision of the Declaration or rule adopted by the Association will be a waiver or estoppel of the Association or owner to enforce any other provision of the Declaration or rule adopted by the Association.

Section 3. Costs and Attorney Fees. The provisions of the Declaration, Articles, Bylaws, and rules, regulations and architectural guidelines for Oak Park, including any amendments or modifications made to them, are binding and enforceable upon each and every Lot and Lot Owner in Oak Park. For any violation of the Declaration, Articles, Bylaws, or rules, regulations or architectural guidelines adopted by the Board or the Committee, each owner in violation may be subject to an action at law or in equity by the Association to enjoin the violation, or pursue any other relief or remedy as may be set forth in the Declaration, Articles, Bylaws or rules and regulations.

If the Association takes any action to enforce any provision or restriction in the Declaration, Articles, Bylaws, or properly adopted rules, regulations and architectural guidelines of the Association, including such acts as the preparing and sending of violation letters, towing of vehicles, self-help, or filing a legal action in the courts, then the Association will be entitled to reimbursement from the party or parties found to be in violation of a covenant, rule or guideline of all its costs and expenses, including

reasonable attorney fees, administrative charges by a management agent, and court costs, for the enforcement action.

The remedies in this provision are in addition to, or supplement, any remedies of the Association identified in the Declaration, Articles, Bylaws or Rules and Regulations, and may be used or applied to any enforcement activity or action taken by the Association to stop a violation of the Declaration, Articles, Bylaws or any properly adopted rule, regulation or guideline of the Association.

These remedies are adopted to maintain the intent and spirit of the Declaration, Articles or Bylaws that the Association and its members should not be penalized or suffer a financial loss to the Association's operating budget for the cost of any enforcement effort necessary to gain or achieve an Owner's compliance with the terms and restrictions set forth in the Declaration, Articles, Bylaws or any properly adopted rule, regulation or guideline of the Association.

ARTICLE XII

Amendments

Section 1. Amendments. The Board of Directors of the Association may alter, amend, repeal the Code of Bylaws or adopt a new Code of Bylaws for the Association, without the approval of the Members, by an affirmative vote of the majority of the members of the Board of Directors of the Association.

Section 2. Recording. While the Code of Bylaws does not have to be recorded under Indiana law, if the Board decides at any point in time to record the Code of Bylaws, the Bylaws, including all future amendments or changes thereto, must be executed by the President and Secretary of the Board and recorded in the Office of the Hendricks County Recorder before becoming effective.

Section 3. Document Conflicts. In the case of any conflict between the Declaration and the Articles, the Declaration will control. In the case of any conflict between the Declaration and these Bylaws, the Declaration will control. In the case of any conflict between the Articles and these Bylaws, the Articles will control.

ARTICLE XIII

The Indiana Nonprofit Corporation Act of 1991

The provisions of the Indiana Nonprofit Corporation Act of 1991, as amended, applicable to any of the matters not herein specifically covered by these Bylaws, are hereby incorporated by reference in and made a part of these Bylaws.

[End of Bylaws]

We certify that this Revised and Restated Code of Bylaws of Oak Park Homeowners Association, Inc. was duly moved and passed by a majority of the Board of Directors of the Association.

OAK PARK HOMEOWNERS ASSOCIATION, INC.

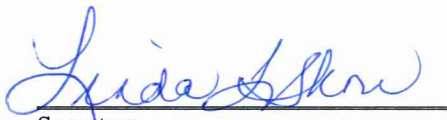


President

7/22/13
Date

JERRY L. FISHEL
Printed Name of Director

ATTEST:



Secretary

7/22/13
Date

Linda L. Shore
Printed Name of Director